

Court No. - 32

Case :- WRIT - C No. - 35093 of 2023

Petitioner :- Rakhi Arora And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Dharmendra Shukla, Saurabh Shukla, Sr. Advocate

Counsel for Respondent :- C.S.C, Abhishek Srivastava, Bhanu Bhushan
Jauhari, Mukesh Kumar Singh

Hon'ble Salil Kumar Rai, J.

Hon'ble Surendra Singh-I, J.

On the request of counsel for the petitioner, the matter is adjourned for the day.

Put up again as fresh on **3.11.2023** before the appropriate Court.

The case shall not be treated as tied up or part heard by this Court.

Order Date :- 18.10.2023

IB

Court No. - 40

Case :- WRIT - C No. - 35093 of 2023

Petitioner :- Rakhi Arora And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Dharmendra Shukla, Saurabh Shukla, Sr. Advocate

Counsel for Respondent :- C.S.C, Abhishek Srivastava, Bhanu Bhushan Jauhari, Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard Shri Anil Tiwari, learned Senior Advocate assisted by Shri Saurabh Shukla, learned counsel for the petitioner; Shri Abhishek Srivastava, learned counsel appearing for respondent no. 2, Shri Mukesh Kumar Singh, learned counsel appearing on behalf of respondent nos. 3, 4 and 5; Shri Bhanu Bhushan Jauhari, learned counsel appearing for the respondent no. 6 and learned Standing Counsel appearing for the State-respondent no. 1.

2. The present writ petition has been preferred assailing the order impugned dated 16.9.2023 passed by respondent no. 5 (Annexure no. 1 to the writ petition).

3. Shri Anil Tiwari, learned Senior Advocate for the petitioner states that there was civil dispute inter se between the daughter-in-law (first petitioner) and the mother-in-law (respondent no. 6). It is also pressed that rights, title and claim have already been settled by the competent civil court even though the contesting-respondent is trying to oust the petitioner from the house in question by disconnecting the electricity. He further submits that in view of Clause 4.4 of Electricity Supply Code 2005, it is not domain of the electricity department to have any objection. Even, in case, NOC is not accorded by the landlord or occupier of the house, the person who is occupying the house has every right to get the electricity connection on furnishing the indemnity bond. He has confined his prayer that the Executive Engineer/respondent no. 5 may decide the application of the petitioner for according electricity connection in the light of aforesaid provision.

4. We have occasion to peruse the record in question as well as the Electricity Supply Code, 2005. Suffice to indicate The Electricity Supply Code, 2005 is a self-contained Code and the full-fledged mechanism provided therein to redress the grievance of the petitioner. We are also of the considered opinion that the petitioners have every right to get the new electricity connection in view of the provisions contained under Clause 4.4 (a) of the Electricity Supply Code, 2005, which reads as under.

"Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete

in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law /statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3) " .

5. In view of the above, in case the first petitioner moves an appropriate application along with requisite documents before the respondent no. 5 within a week's time from today, we hope and trust that the grievance of the petitioner would be redressed in the light of aforesaid provision on or before the next date of listing.

6. Put up this matter as fresh on 16.11.2023.

Order Date :- 3.11.2023

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Court No. - 40

Case :- WRIT - C No. - 35093 of 2023

Petitioner :- Rakhi Arora and another

Respondent :- State Of U.P. and 5 Others

Counsel for Petitioner :- Dharmendra Shukla, Kabeer Tiwari, Saurabh Shukla, Sr. Advocate

Counsel for Respondent :- C.S.C, Abhishek Srivastava, Bhanu Bhushan Jauhari, Mukesh Kumar Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

(C.M. Recall Application No.3 of 2023 filed on behalf of the petitioners)

1. Heard learned counsel for the parties.
2. This application has been filed on behalf of the petitioners for recalling the order dated 03.11.2023 passed by this Court, wherein it was provided that in case the first petitioner moves an appropriate application alongwith requisite documents before the respondent no.5 within one week, the grievance of the petitioner would be redressed in accordance with provisions contained under Clause 4.44 (a) of the Electricity Supply Code, 2005 (hereinafter, referred as the Code).
3. Learned counsel for the petitioners-applicants states that on a family settlement, the property in question was given to the petitioner no.1 and her husband. The said family settlement was filed before the Civil Court and the decree of partition was passed in terms of the family settlement in the year 2017. In compliance thereof, the property was recorded in the name of the petitioner and the electricity connection was also transferred in the name of petitioner under provision of Clause 4.44 of the Electricity Supply Code, 2005. Later on, the respondent no.5 had filed a complaint before the department on the ground that before mutation, no objection from the earlier connection holder was not obtained. It is submitted that for obtaining mutation, no objection from the earlier connection holder is not required and the case of the petitioner is covered by Clause 4.44 of the Code.
4. Learned counsel for the respondents has no objection, in case the order dated 03.11.2023 is recalled and the matter be heard

on merits.

5. In the facts and circumstances, the recall application is allowed and the order dated 03.11.2023 is recalled.

(Writ Petition).

1. Heard Sri Anil Tiwari, learned Senior Advocate assisted by Sri Saurabh Shukla, learned counsel for the petitioners; learned Standing Counsel for the State respondent no.1; Sri Mukesh Kumar Singh, learned counsel for respondent nos.2 to 5 and Sri B.B. Jauhari, learned counsel for the respondent no.5.

2. Present writ petition is preferred assailing the validity of the impugned order dated 16.9.2023 passed by the Executive Engineer, Vidyut Vitaran Khand-II, Shahjahanpur (respondent no. 5). Further request is made to issue direction in the nature of mandamus commanding the respondents not to interfere in the functioning of the petitioner's establishment.

3. Sri Anil Tiwari, Senior Advocate appearing for the petitioners submits that M/s Durga Hotel (petitioner no.2) is an unregistered proprietorship firm with sole proprietor, Rakhi Arora (petitioner no.1). The aforesaid hotel was earlier run by the HUF headed by Puran Lal Arora. However, w.e.f. 01.04.1994 the firm namely Durga Tourist Hotel was constituted as proprietorship firm with proprietor Smt. Kailash Rani and the said hotel was run by her till 31.03.2016. There was no dispute between the members of HUF till date. The husband of the petitioner namely Mohit Arora was inducted as a partner in the firm w.e.f. 1.04.2016. In the year 2017, a suit was filed by the petitioner's son namely Mohit Arora and his wife Rakhi Arora (petitioner no.1) being Suit No.188/2017 for partition of the properties and finally, the said suit was decided in view of family settlement between all the members of HUF vide judgement dated 24.07.2019 and the ownership of the property was transferred to Rakhi Arora and his deceased husband late Mohit Arora. Meanwhile, Sri Mohit Arora died on 20.12.2020 and the property was mutated in the name of petitioner no.1. Since the ownership of the property was transferred, the petitioner no.1 applied for transfer of electricity connected in her name as per provisions contained under Clause 4.44 of the Code. In the meanwhile, Smt. Kailash Rani has made a complaint to the respondents regarding the electricity connection on 15.09.2023 and without examining the record, the respondents have passed the impugned order dated 16.09.2023. The request has been made for issuing direction to the competent authority for considering the reply of the petitioners to the objection filed by respondent no.6 as per law.

4. Sri Mukesh Kumar Singh, learned counsel for respondent nos.3, 4 and 5 has no objection, in case the matter may be relegated to the competent authority to process objection filed by respondent no.6 to which the petitioners have already filed their reply. He further submitted that in case the petitioners approach the competent authority along with all requisite documents, the same would definitely be considered as per the provisions of Code but certainly after giving opportunity to respondent no.6.

5. As the parties are in agreement that the objection of respondent no.6, wherein notice has been issued to the petitioners, be decided by the competent authority as per the provisions of Code, 2005, we direct that in case the petitioners file their reply to the said notice before respondent no.5 along with all the requisite documents, the concerned authority shall proceed to decide the objection of the contesting respondent on merits, but certainly after giving opportunity to the petitioners as well as the complainant (i.e. respondent no.6).

6. Accordingly, the writ petition is disposed of.

Order Date :- 8.11.2023

Manish Himwan